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THE WHITE HOUSE
WASHINGTON

MEMORANDUM OF TELEPHONE CONVERSATION

SUBJECT: Telephone Conversation with President
Francois Mitterrand of France

PARTICIPANTS: The President
President Francois Mitterrand
Carol Walters, Interpreter
Notetaker: Adrian Basora, NSC Staff

DATE, TIME August 20, 1990, 3:59 - 4:28 p.m.
AND PLACE Kennebunkport, Maine

The President: Francois how are you? I am sorry to call you so late.

President Mitterrand: It's fine like this.

The President: These are complicated times.

President Mitterrand: Yes, they are.

The President: I want to make a few remarks and to ask your advice, but first I want you to know how much we appreciated your firm response against Iraq. I am told by our Ambassador at the UN, Tom Pickering, that it looks as if we are within reach of a UN Security Council resolution which would call for the use of force to enforce the embargo. Our lawyers tell me that the existing UN resolutions and the letter from the Amir of Kuwait give us the legal authority we need. But it would help to have a UN resolution as well. I am not sure when the UN Security Council vote will take place because I have been traveling all day, but if it is not too late, any help that the French Ambassador at the UN can give would be welcomed. However, I believe that we do have the authority to stop them and I do not think we can let these two ships continue on their route. This would be the first U.S. use of force in this crisis, but if we let the ships go on, the economic isolation policy under Chapter 7 would unravel.

One final point, and then I would like to hear your views. I am increasingly concerned about the detained Americans. I am now convinced that they are hostages, because the Iraqis have made demands for their release. For my country, we cannot endure another prolonged situation like the one in Iran which lasted 500

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days. We cannot permit the continuing exploitation of these people. Those are my remarks. Now, I would like to hear your views.

President Mitterrand: On the last point, it is evident that your nationals and the others are hostages. Therefore, Iraq is exposing itself to the laws of war. It is not possible for countries with citizens in Iraq to go on for long accepting this situation. Time is critical to the handling of this issue, but are you, or are we, able to act quickly? This is a question that I am asking; I don't know the answer.

The President: We think that the Iraqis have already dispersed many of the people there, at least the Americans. Therefore, we cannot take a single, concentrated action to liberate them. But we do have the means to take action to punish Husayn severely.

President Mitterrand: On the other issue of the UN Security Council resolution regarding the Iraqi ships, it would be (and I am using the conditional) desirable to get a new resolution as soon as possible because this would give the actions a basis in international law.

The President: Yes, I hope that the UN Security Council will do this but, even if not, we will need to take action.

President Mitterrand: Yes, but in any case it would preferable to have the UN resolution.

The President: Yes, I agree. Therefore, we are closely tracking the two ships that we highly suspect.

President Mitterrand: Where are they now?

The President: One is enroute to Aden in South Yemen. For the other, we don't know its destination. We think that both ships are at least two days from any possible destination. One of them has been moving in and out of Oman's territorial waters. One of the captains says he would like to comply with our demand that he stop, but he has strict orders to continue. The other tanker is low in the water. The captain says he has a ballast of water, but I think we have confirmation that he is carrying petroleum. We have a real problem, however, because stopping this one will require a significant use of force. Since the ship is low in the water, we cannot use the usual technique of shooting out its rudder.

President Mitterrand: You could stop (arraisonner) them though, couldn't you?

The President: Yes, I think they will stop. We believe that their crews are principally Filipinos. I think they will prefer to go home rather than engage in hostilities.

President Mitterrand: Everything should be done to stop those ships.

The President: On another subject, I have been very impressed with the actions taken by the Turkish President Ozal.

President Mitterrand: Yes.

The President: Ozal has told me that Rafsanjani told a high Turkish official who visited Tehran that, despite the peace settlement with Iraq, he is still supportive of the UN resolutions. Also, I have been impressed by the actions of the USSR. This is a tough problem, but it helps that the Soviets are being so understanding.

President Mitterrand: Yes, this is very important.

The President: I am convinced that we cannot sit forever without taking action. Ozal is optimistic that the economic sanctions are having an effect, but if we wait too long to take action, the situation will get worse.

President Mitterrand: I think like you do.

The President: Let's stay in touch, Francois. I welcome all your views on the policies to follow. We agree regarding the UN Security Council resolution.

President Mitterrand: To end, let me sum up my views.

First, regarding the embargo, we have at least 24 hours to get full international guarantees. If not, we will have to act, but that we will know tomorrow, once a decision is reached at the UN. We must take action because, otherwise, the call for an embargo would be absurd. But we have 24 hours before we need to take military measures.

In contrast, the issue of the hostages is an immediate problem. The taking of hostages is an act of war. France has been through two wars, in 1914 and in 1940. When you go to war, foreign nationals are put into camps and then evacuated gradually. They are never put in dangerous locations, and they are evacuated under international controls. The current situation is one of neither peace nor war. Therefore, we need to clarify the situation as quickly as possible. The use of hostages in war is an act of unacceptable barbarism which we cannot tolerate. Therefore we have the right to take action. This second point is the most urgent.

The President: Yes, but I must tell you frankly that on the ships, we see a course of action that we can take this minute -- whereas on the hostages we do not yet see such a course of action.

President Mitterrand: I understand.

The President: I don't know what we can do right now unless there would be some benefit from a broad statement by a number of nations making it clear to Saddam Husayn that he will pay a heavy price if he goes beyond a certain point. This might be a possibility.

President Mitterrand: I think a declaration would be useful. You can't be at peace and at the same time take actions that are forbidden under the code of war.

The President: Why don't we reflect on this possibility of a declaration, and then we can consult after the UN Security Council resolution.

President Mitterrand: Yes, and we can talk again tomorrow or the day after.

The President: Yes, that is good. We can stay in touch. Thank you for your views. Our views are very similar.

President Mitterrand: Thank you.

The President: Merci and au revoir.